In The Matter Of:

TARA WALSH vs.

STEPHEN RUSSELL

B E F O R E: HON. ARLENE GORDON-OLIVER

September 11, 2018

Aarons Court Reporting

175 Main Street, Suite 18, 7th Flr.

White Plains, NY 10601

914-506-1288

Original File AARONS_154703_WALSH_V_RUSSELL_09112018.txt

Min-U-Script® with Word Index

Public copy: private street addresses are removed. Otherwise unchanged.

THE STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT

----------x

TARA WALSH,

Petitioner,

vs.

FAMILY UNIT: 154703
DOCKET NOS.: O-06917-18
O-06917-18/18A
O-06917-18/18B
V-07641-18

STEPHEN RUSSELL,

Respondent.

----------x

111 Martin Luther King Blvd,
White Plains, New York 10601

September 11, 2018

B E F O R E: HON. ARLENE GORDON-OLIVER

A P P E A R A N C E S:

LYDIA ANTONCIC, Attorney for Petitioner
JASON ADVOCATE, Attorney for Respondent
KATHERINE CHESTNUT, Attorney for Respondent
JENNIFER JACKMAN, Attorney for the Child
TARA WALSH, Petitioner
STEPHEN RUSSELL, Respondent

Electronic Proceeding transcribed by:
STEPHANIE HANDLEY, Transcriber
AARON'S COURT REPORTING, LLC
175 Main Street, 7th Floor, Suite 18
White Plains, New York 10601

INDEX

E X A M I N A T I O N S

NO WITNESSES OR EXHIBITS

PETITIONER

Witness	Direct	Cross	Re Direct	Re Cross

RESPONDENT

Witness	Direct	Cross	Re Direct	Re Cross

E X H I B I T S

PETITIONER

Exhibit No.	Description	ID	Evidence

RESPONDENT

Exhibit No.	Description	ID	Evidence

(2:44:05 P.M.)

THE COURT: All right, good afternoon, everyone. I wanted an attorney's conference only because there are a couple of issues that I need to go over.

Let me just deal with the first issue when I was out of chambers last week. This stipulation that came into me for the access for the father to be with the babysitter --

MR. ADVOCATE: The visitation schedule.

THE COURT: The visitation. Where I ordered that the visitation would be supervised by the grandfather of the baby.

MS. JACKMAN: Yes, the maternal --

THE COURT: Okay.

MS. JACKMAN: -- grandfather that was supposed --

THE COURT: Right.

MS. JACKMAN: -- to have supervised.

THE COURT: What was the issue? Why was this being brought (inaudible) like an emergency basis, but not really an emergency because (inaudible) access? What was going on?

What do I -- and it was just for this weekend, no other weekend. Does somebody want to tell me?

MS. ANTONCIC: Well, the father lives in California, Your Honor.

THE COURT: I know where he lives.

MS. ANTONCIC: And so he was going to be here, you know, prior to the court appearance.

THE COURT: Okay.

MS. ANTONCIC: Tara's father is not always available, so that's kind of how that came out. But beyond that, I'll let Mr. Advocate or Ms. Chestnut --

MR. ADVOCATE: I'm going to let my partner, Katherine Chestnut, handle this, Your Honor. I was out the last couple of weeks, so I was totally out of the loop.

THE COURT: Oh, okay. So you and I were in the same position?

MR. ADVOCATE: Thank you, Your Honor.

MS. CHESTNUT: Your Honor, my client came to New York for, I think, about two weeks in mid-August, and it became very clear at that point that the mother's father was not willing to supervise his visits. He expressed disdain for my client. I --

THE COURT: He expressed it to?

MS. CHESTNUT: To my client himself. Also, he asked his -- the mother had her California attorney tell him that her mother would supervise the visits instead of the father. And when we contacted the mother, essentially the father came by our office and said, "Don't contact my wife. This is harassment. How dare you?"

And so, at that point, I believe all counsel agreed that he shouldn't be supervising the visits anymore. And since my client had brought his nanny with him from California, we felt that she could possibly supervise that.

THE COURT: Okay, let me ask you a question. He brings the nanny with him for what purpose? I couldn't --

MS. CHESTNUT: For the purpose of trying to supervise the visits in hopes that we could get this going because --

THE COURT: So he brings the nanny before --

MS. CHESTNUT: -- we haven't had --

THE COURT: -- he even knows whether or not --

MS. CHESTNUT: We had to have --

MS. ANTONCIC: That's our point, exactly, Your Honor. He showed up here and expected everyone to drop everything to --

THE COURT: That's how I feel --

(Simultaneous discussion)

THE COURT: -- to be honest with you.

MS. ANTONCIC: -- get this done and --

THE COURT: That it was really inappropriate the way it was done.

MS. ANTONCIC: We -- and we -- you know, we worked tirelessly to get it done because, despite everything, my client believes that he should have access

to his daughter, but this is now the second time he's just shown up and expected, you know, this emergency access to be modified.

I just want to briefly address the allegation, what Ms. Chestnut said about my client's father. What she neglected to say is that Mr. Russell has sent Tara's father several harassing texts, calling him -- I don't even want to repeat the profanity, but it's in our papers. And he also has sent, you know, threatening legal action and what not.

And, quite frankly, he's had it. He's had it with this inappropriate behavior, so we're not going to dispute that it should be a mutual person. We've been discussing it outside.

THE COURT: So that was my other issue. Babysitter hired by your client?

MS. CHESTNUT: By both the parties, Your Honor.

(Simultaneous discussion)

THE COURT: What do you mean by both parties?

MS. CHESTNUT: It was a nanny that both parties wanted at the time.

THE COURT: One second. She doesn't pay this nanny. He pays the nanny.

MS. CHESTNUT: That's correct.

THE COURT: So it's an employee. That's not what

I envision when I do supervised visits. Mutual party.

MS. CHESTNUT: Your Honor, this is a nanny that they both selected together and who was the full-time, 24-hour --

(Simultaneous discussion)

THE COURT: Was is the operative word.

MS. CHESTNUT: -- for over three months.

THE COURT: Well, was is the operative word, right? Isn't it?

MS. CHESTNUT: Yes.

THE COURT: Is it a current nanny?

MS. ANTONCIC: No.

MS. CHESTNUT: No, Your Honor. And my client never hired Ms. Tahaya (ph). This was -- Mr. Walsh hired her and Ms. Tahaya apparently has a non-disclosure agreement that she signed with Mr. Walsh. So my client obviously does not consent to that.

THE COURT: Wait one second. But Ms. Tahaya gave me a statement that you consented to.

MS. CHESTNUT: Only because -- only for these couple of dates so that he can see the baby. That was --

THE COURT: Where was he going to see the baby?

MS. CHESTNUT: We specifically (inaudible) --

THE COURT: One second. Where was he going to see the baby?

MS. CHESTNUT: I believe -- Your Honor, I don't have the stipulation in front of me, but I believe it was in his hotel room.

THE COURT: Okay. So, counsel, if their clients correct that the father is so out of control, why would you have the client agree -- I just didn't understand why this agreement was done.

MS. ANTONCIC: California counsel sent that agreement over. And the reason why is because he was here for a couple of days. Ms. Jackman had met with Ms. Tahaya and said that she didn't have any concerns with Ms. Tahaya caring for the child.

My client doesn't believe that Ms. Tahaya would harm the child either. What she doesn't believe is that if Mr. Russell does something inappropriate, that she will disclose it. And that's why she's not comfortable.

THE COURT: Then why did you okay your client to sign off on the stip?

MS. ANTONCIC: Because it was to cover a two-hour visit. That's why. I mean, I'm sorry, it was more than two hours.

MS. JACKMAN: Because it was for a very limited purpose and I believe that the mother was quite clear on the stipulation that she wasn't going to agree going forward.

The bottom line, Judge, is that they had a very specific order. Mr. Walsh, the maternal grandfather, was supposed to supervise the visit. There's no dispute the relationship broke down. He is not going to supervise the visits anymore. So we --

THE COURT: And you know -- I'm so sorry to cut you, Ms. Jackman. Somebody should've brought this to my attention. Emergency access is always the way to go if there is a breakdown and something needs to happen, but I couldn't understand why it wasn't brought to me in an emergency access request. And then, all these things were being done.

MS. CHESTNUT: Your Honor, just to clarify, we were trying to negotiate interim access prior to my client coming here from California the first time in mid-August.

And when things kind of were moving slowly, I said, you know, it could start tomorrow, so maybe you should come out here so that when it starts, you're going to be here and they're going to be able to do it. And at that point, we had all, I believe, agreed on Ms. (Inaudible) doing the supervision.

But then, we couldn't finalize that stip and he ended up going back to California, and then came back again last week. He's only had one visit, other than the single visit he had back in July because of this situation.

We did our best to try to resolve this without, you know, going forward with further motion practices. There are -- is already an order to show cause and a cross motion, both seeking emergency temporary physical custody of the child. And so we were trying to get that and, unfortunately, it only resulted in one visit. And it took a long time and my client is here. His number one priority is to see this child.

(Simultaneous discussion)

MS. ANTONCIC: His number one priority is to see the child, Your Honor, but they had a visit scheduled for Sunday, which he only used one hour-and-a-half of the three hours. He also declined access yesterday when it was offered to him.

THE COURT: Right. But if he’s having a problem with -- the relationship has broken down, I can understand why.

But, you know, this is why you bring these things to the attention of the Court so that I can figure out, okay, how do we make sure that the parties are getting what they need or desire without unilaterally taking it on their selves and not alerting me to, “There was an issue, Judge, why we are doing this change.”

MS. ANTONCIC: Well, understood, Your Honor. I do believe Ms. Chestnut did send a request for a telephone

conference.

THE COURT: Yeah, but that's not --

(Simultaneous discussion)

THE COURT: -- how we do emergencies in this Court.

MS. ANTONCIC: I understand.

THE COURT: A telephone conference --

MS. ANTONCIC: I understand.

MR. ADVOCATE: How -- what is the procedure? You would like (inaudible) to call?

MS. JACKMAN: File a motion.

THE COURT: No, no. Or you can just (inaudible) an access request if you've got a problem and then we can temporary -- you know, file it in the morning and get heard the same day. And if I'm not here, any judge hears it. But no telephone conferences.

I'm on the bench from 9:30 to 5:00, so there's no way I'm going to be able to attend to it. And then, I'm the type of judge, I want to see the parties and I want to hear all the arguments. And a telephone conference really doesn't allow me to get all that done. So -- and it brings my day -- unless I have it scheduled in advance, there's no way I can get off the bench with other cases pending to do a telephone conference on such a complicated manner. So --

MR. ADVOCATE: Next time, we'll definitely do

that.

THE COURT: Do it, gladly. Even if it's just handwritten. You don't have to type it all up. (Inaudible) between the parties, and dad needs access, and there's no communication between father and the grandfather, and we need to have someone supervise.

I'll hear it that way, but it has to come before me on the record. Because the other thing, Ms. Jackman, you had an opportunity to meet with the proposed babysitter?

MS. JACKMAN: I did, Your Honor, yes.

THE COURT: And let me tell you what my reservations are with this babysitter. Babysitter is paid for by dad.

MR. ADVOCATE: 100 percent. It's his employee.

THE COURT: No, that's not what I mean by supervised visits.

MR. ADVOCATE: As -- it's not our idea of supervised visitation either, Your Honor. But to be clear, I want to just take a step back for a second.

THE COURT: Right.

MR. ADVOCATE: There's a motion that he needs supervision.

THE COURT: Yes.

MR. ADVOCATE: That actually hasn't been

established anywhere.

What we actually have is a request on the mother's side for supervised visitation. We have a request on the father's side that the mother should be supervised, and not by her parents. We've got a request on our side that says, well, he doesn't need supervision at all.

But just to facilitate access now before this Court eventually has its evidentiary hearing, we will agree to state, we will make sure that the mother's concerns regarding the father are alleviated because he's going to have a full-time childcare provider available to help. I don't agree that supervision is necessary. But if the Court thinks it is, let's have a hearing on it (inaudible) --

THE COURT: I don't know if that's the mother's concern, that the father doesn't have the ability to take care of the child. I think it's more than that.

MS. ANTONCIC: It's way more than that, Your Honor.

THE COURT: Yes. So --

MS. ANTONCIC: He's had a serious erratic behavior. There are allegations of --

THE COURT: That's what I'm hearing.

MS. ANTONCIC: -- drug use and hallucinations and what I feel are very serious allegations on, you know -- as

to Mr. Russell's behavior.

And we -- you know, we submitted a declaration from one of his -- one of the few security officers that don't work for him anymore that outlined his bizarre behavior right after the baby was born.

So my client just wants to make sure the baby is safe. I actually suggested a court-appointed neutral to do the --

(Simultaneous discussion)

MS. ANTONCIC: -- because then the Court has the access to reports.

THE COURT: And I have someone to report back to me about both parties. Now, the only reason why the Petitioner in this case, Mr. Advocate, was allowed to even have custody was because she's already (inaudible) with her mother and father supervising to make sure that the baby was safe and there were no issues.

And my -- and at that point, the mother and father, your client even, had said, you know, he got along with them great and he was okay with them supervising. I'm not -- is my memory --

MS. ANTONCIC: Yes.

MR. ADVOCATE: (Inaudible). He said he had a decent relationship with the father.

THE COURT: Yes. Right.

MR. ADVOCATE: He even had a great relationship with mom.

THE COURT: (Inaudible) so that we all decided, okay, great. So there is this person that your client actually said a decent relationship and he was okay with supervising, and if she was with the parents, her parents, then it was okay, and he could go visit.

I mean, this was the way we all got to --

MR. ADVOCATE: But if we're doing (inaudible) assessment, then I want an assessment on both sides. If (inaudible) supervising present, I think the supervisory should be present and reporting for the Court about what they're seeing at mom's house --

THE COURT: Absolutely.

MR. ADVOCATE: -- and what they're seeing in dad's house.

THE COURT: Absolutely.

MS. ANTONCIC: My client has no objection to that, Your Honor.

THE COURT: Absolutely. I totally agree with you 100 percent on that. So that's what we're going to need to do.

MR. ADVOCATE: Let's -- there are a few of these agencies up in the county that do supervised visitation like that, Your Honor. Is there one that you particularly

prefer?

THE COURT: The agencies work a little bit slowly in terms of getting on board. I'm thinking about one of the individual supervisors. We've got --

MR. ADVOCATE: Jennifer, do you have any suggestions?

MS. JACKMAN: No. I think we're looking (inaudible) now because --

THE COURT: Delia Farquharson?

MS. JACKMAN: Yes.

THE COURT: I would highly suggest Delia Farquharson.

MS. JACKMAN: Yeah.

MS. ANTONCIC: I'm sorry, what is the name? Delia --

MS. JACKMAN: Farquharson.

MS. ANTONCIC: Parkinson?

MS. JACKMAN: Yeah, I can give you her contact information. I have it in my office.

THE COURT: Delia Farquharson. Now, Mr. Advocate, one of the issues that I have is that, you know, Ms. Farquharson can observe for periods of time how mom interacts with the child, but mom's going to still be with her parents.

MR. ADVOCATE: Yeah, I understand.

THE COURT: Okay?

MR. ADVOCATE: So I'm happy we have that --

THE COURT: So that's (inaudible) --

MR. ADVOCATE: -- (inaudible) observe the whole family dynamics, which it doesn't need to be, obviously, twenty-four seven. I think for a period of time --

THE COURT: That's fine.

MR. ADVOCATE: -- (inaudible) both sides of the table and then we can move beyond that.

THE COURT: Let's see if --

(Low discussion)

MS. JACKMAN: (Inaudible) it was one --

THE COURT: Okay. I have Ms. Farquharson's --

(Low discussion)

MS. ANTONCIC: Would you spell it? Is it F-A-R-K-I-S-O-N?

MS. CHESTNUT: Q. Q.

THE COURT: Q. F-A-R-Q.

MS. ANTONCIC: F-A-R-Q?

(Low discussion)

MS. ANTONCIC: Maybe we should, Judge, prepare two in case she's not available?

THE COURT: Who else would you suggest, Ms. Jackman?

MS. JACKMAN: I don't know of any individuals

except for SVE at this point. They do go (inaudible).

THE COURT: Yeah, but SVE is --

(Low discussion)

THE COURT: Okay. So we're going to make a call to see if she's available. All right.

MR. ADVOCATE: Judge, (inaudible) just one (inaudible) I just want to make the Court aware. I just want to maybe close this a little bit.

Right now, the Petitioner, Tara Walsh, she's staying with her parents. She's, of course, (inaudible). But there's no order that requires her to do so. We'd be concerned a little bit if she were to leave without the parents' supervision, that she -- some order that says that she can't relocate from the parents without Court authority or --

THE COURT: Okay. So let me ask (inaudible) mom, do you have a problem with the order? Is that -- I don't see where it's --

MS. ANTONCIC: I mean, I would have to run that by my client, but I don't believe that she would have an issue with that, but I don't want to say that without speaking to her.

THE COURT: Okay. So you run that by her and you tell her that the Judge thinks it's a good idea, just to make sure that there's status quo.

MS. JACKMAN: I've actually spoken to them about that. They're a family. They're working together. I just saw them recently at their home and I'm satisfied with the baby, who is wonderfully happy and beautiful, growing very, very well, is safe --

THE COURT: Okay.

MS. JACKMAN: -- at the house with the grandparents and the mother.

THE COURT: All right. Okay. So (inaudible) you might want to tell your client if she has any reservation whatsoever the Court and the AFC thinks it's a good idea.

MS. ANTONCIC: Okay, sure. Okay.

THE COURT: Okay. So where -- we need to see if Ms. Farquharson can get right on this. Let me ask a question: Is dad still going to be here?

MR. ADVOCATE: Yes, Your Honor. He's in house --

THE COURT: Okay.

MR. ADVOCATE: Right now, he's in, I think, a hotel or something, but he is looking at a couple of houses in the area. One is --

THE COURT: Okay, good.

MR. ADVOCATE: -- in Chappaqua and another one is in (Inaudible).

THE COURT: Okay.

MR. ADVOCATE: So very close by.

THE COURT: Okay.

MR. ADVOCATE: He’s going to make himself available until such time as we sort out the custody situation here.

THE COURT: Okay, perfect. Okay. Because I do want him to be able to have a relationship with the daughter.

MR. ADVOCATE: (Inaudible) work out some visitation schedule and everything else today.

THE COURT: Okay, fine. So that I’m going to leave the parties to do with -- and I guess we’re going to need Ms. Farquharson for that also?

MS. JACKMAN: Yes.

THE COURT: And I’m not --

(Low discussion)

MS. CHESTNUT: Jason?

MR. ADVOCATE: Yes?

(Low discussion)

THE COURT: And I’m not opposed to the babysitter being available, but that just can’t be the supervisor because she’s an employee.

(Low discussion)

THE COURT: (Inaudible) quickly.

(Low discussion)

THE COURT: Oh, good. Okay. So Ms. Farquharson

is available and she can (inaudible) about it (inaudible).

(Simultaneous discussion)

THE COURT: Mr. Advocate? Ms. Farquharson is available and she's ready to turn her attention towards it. We have someone.

MR. ADVOCATE: Oh, that's terrific, Your Honor.

(Simultaneous discussion)

THE COURT: All right.

MR. ADVOCATE: That's great.

THE COURT: See, this is how I work. You come to court and tell me what you need, and I get right on it.

MR. ADVOCATE: Okay. So --

THE COURT: Okay. So --

MR. ADVOCATE: -- the next issue becomes sort of a --

THE COURT: Hold on one second. My next issue is jurisdiction. I'm sure you've all gotten the order from the California court and the transcript?

MS. ANTONCIC: No, Your Honor --

(Simultaneous discussion)

MS. ANTONCIC: -- because I was going to ask for it. You have it?

MR. ADVOCATE: I --

MS. JACKMAN: I have not.

MR. ADVOCATE: I don't have the order, but I did

(inaudible) the transcript last night.

MS. ANTONCIC: Well, I didn't get the transcript yet. I know --

(Simultaneous discussion)

MS. ANTONCIC: I did receive the draft order, but not the transcript.

THE COURT: I hope you both were in touch with your counterparts in California.

MR. ADVOCATE: And we just -- I just got it from the California lawyer yesterday, last night.

THE COURT: Oh, so you have it now?

MR. ADVOCATE: I have it and I can give it to --

MS. ANTONCIC: Yeah. I just spoke to Ms. Corson (ph) and she didn't say anything about it, so I'm assuming she didn't get it. I mean, I don't know if your --

(Simultaneous discussion)

MS. ANTONCIC: -- counterpart got it yesterday.

MR. ADVOCATE: I can summarize it very briefly. This Court is going to handle jurisdictional aspect of the case. The California Court is not handling anything other than the old (inaudible) --

THE COURT: Okay.

MR. ADVOCATE: -- (inaudible).

MS. ANTONCIC: (Inaudible) go forward.

THE COURT: Okay. All right. So now, the

question that I have for the both of you is: Is anyone objecting to this Court having jurisdiction? If you do object, then I'll set it down for an evidentiary hearing, but do you really want to spend time doing that?

MR. ADVOCATE: Let me just speak to my client about that briefly, Your Honor. I haven't had a chance to discuss it.

THE COURT: And then -- yes. And then --

MR. ADVOCATE: We will have a quick discussion.

THE COURT: All right. Let him go through this transcript also because you'll get an idea as far as of the (inaudible) here, so --

MR. ADVOCATE: I got that feeling, so (inaudible) --

THE COURT: Okay.

MR. ADVOCATE: So I'll explain that to him.

THE COURT: All right, great. Okay. So, Mr. Advocate, I cut you off. You were going to say there's another issue?

MR. ADVOCATE: No, it's just, logistically, from now and for the next, you know, few weeks until -- I don't know what the next step is in the case. I would assume we're moving towards something else, but, in the time being, we have to go with the -- what a visitation schedule (inaudible) --

THE COURT: Right. So that's where the parties are now going to go out. You're going to (inaudible) with the assistance of Ms. Jackman. Now, you also might need Ms. Farquharson there.

MS. JACKMAN: You do. You're going to need her there regardless.

THE COURT: As far as her availability.

MS. JACKMAN: Yeah.

THE COURT: So --

MS. JACKMAN: So I think --

(Simultaneous discussion)

MS. JACKMAN: -- the order (inaudible).

THE COURT: -- telephone number.

(Simultaneous discussion)

THE COURT: And that way, you get Ms. Farquharson on the phone --

(Simultaneous discussion)

THE COURT: -- Ms. Jackman.

MR. ADVOCATE: Yes.

(Low discussion)

MS. JACKMAN: I see. Okay.

MR. ADVOCATE: What --

MS. JACKMAN: No, we're just logistically thinking about what order we could craft today, Your Honor, just saying that there would be supervised visitation, as

with Ms. Farquharson.

THE COURT: I tell you what. We're going to give you her number. See if you can raise her on the phone.

(Low discussion)

THE COURT: See if you can raise her on the phone. Go out to the (inaudible) and try to just bring done some timeframes because I know she's pretty busy, so I want to make sure that you get an opportunity, especially your client, to tell her what your preferences, as far as visits, that she can possibly carve into her schedule.

MR. ADVOCATE: Because a major issue for us, really, is the next step in the case is really -- and the focus for the case is really over the custody issue, right?

THE COURT: I understand.

MR. ADVOCATE: We -- I think everybody in this room knows that's the big issue. You know, obviously, both sides feel it's an emergency situation, so we need to figure out what the timing is.

If we're looking at a trial in the case three months from now, I don't want to have supervision in place that limits him for, you know, two or three hours several times a week that goes months. And I'm willing to do it for a short period of time so as to report back to the Court (inaudible) about the parenting abilities and to have some comfort that he's a --

THE COURT: Okay.

MR. ADVOCATE: -- you know, that he can watch the child without court-ordered supervision.

THE COURT: Okay.

MR. ADVOCATE: Yeah.

THE COURT: Okay. Ms. Jackman had already raised this issue and I think it's a great issue. Forensics. So that's where we're going next.

MS. ANTONCIC: And while on the forensics, Your Honor, we will also like to request -- and my client has said herself that she will agree to this, to drug and substance abuse testing, as well, going forward. And I think that if we can agree to jurisdiction, we can get that started and move this along (inaudible).

And to address Mr. Advocate's concern, my client would have, you know, no objection to, you know, increasing the amount of access, depending on the reports to the Court. This is a very young child. They had an hour-and-a-half visit and she was upset by the end of it, which is understandable.

She doesn't really know him, so, you know, frequent, short visits would probably be a good idea.

MR. ADVOCATE: Your Honor --

THE COURT: I'm going to leave it to the AFC, Ms. Jackman, who is very skilled at trying to figure out what

babies need, want, children in general, okay, Mr. Advocate, so you don't need to respond.

MR. ADVOCATE: I just want to say one thing and it really (inaudible).

THE COURT: Yes, yes, yes.

MR. ADVOCATE: It's not that he doesn't know this child. I think that's an absolutely absurd position. The child was with him since the child was born until the day she came back from California months later here.

And in that period of time, yes, the child hasn't seen him because she violated the agreement --

THE COURT: One second.

MR. ADVOCATE: -- she made with him.

THE COURT: Mr. Advocate, I hear you, but, you know what, I spoke with -- I told you not to bother to respond because I was going to disregard that.

MR. ADVOCATE: Okay. Your Honor, if you're disregarding that, I'll --

THE COURT: I'm disregarding it because children, you know, babies especially, they bond with the person that they're most with.

MS. JACKMAN: Exactly.

THE COURT: So she hasn't seen her dad in a while, it's going to be strange. This is why I'm disregarding that and I'm saying that Ms. Jackman will put

together a schedule, along with Ms. Farquharson, that will work to make sure that the bonding happens with dad also.

MR. ADVOCATE: And I'd like if we come --

(Simultaneous discussion)

MR. ADVOCATE: I'd like to be able to come back to court after a few weeks of that and, say, if we have a good report and then see if unsupervised --

THE COURT: Well, we'll see what happens because I'm going to need to do forensics (inaudible).

(Low discussion)

MR. ADVOCATE: Well, I don't think you're --

(Low discussion)

THE COURT: I'm sorry? Give me one second.

MR. ADVOCATE: Yes.

(Simultaneous discussion)

THE COURT: Oh, emergency?

COURT OFFICER: Yeah.

MS. ANTONCIC: Uh-oh, emergency?

THE COURT: So --

MR. ADVOCATE: I just want to say --

THE COURT: Well, you're going to get a chance to come back.

MR. ADVOCATE: Okay.

(Simultaneous discussion)

MR. ADVOCATE: We'll talk about it in a few

minutes. I'll wait for the emergency to --

THE COURT: Right. Right. So this will get a second call.

MR. ADVOCATE: -- (inaudible).

THE COURT: You're going to try to --

MS. JACKMAN: I'll call -- yes.

THE COURT: -- get Ms. Farquharson and --

MS. JACKMAN: Right now (inaudible) --

(Simultaneous discussion)

THE COURT: -- work on --

MS. JACKMAN: Judge, before we go, without the parties here, I did speak to counselors about private paying this case.

THE COURT: Yes.

MS. JACKMAN: I was appointed by the State, but both parties have private counsel --

THE COURT: Yes.

MS. JACKMAN: -- and I believe that Mr. Russell is of significant means, so I'm hoping I don't have to make a motion (inaudible) --

(Simultaneous discussion)

MR. ADVOCATE: (Inaudible) the only question I have is, Your Honor, I'd like to (inaudible) small (inaudible) number. I don't want that number to be five or ten percent of the AFC, so she's got some (inaudible),

because I do believe she made some significant money last year. I'd like to find that out.

So if that's the case, then she should have some little stake in the AFC's bills. It's something to --

(Simultaneous discussion)

THE COURT: Let me think about what we want to do here, but --

MS. ANTONCIC: My client also has a fee application, Your Honor.

THE COURT: Okay.

MS. ANTONCIC: Mr. Russell is a multi-millionaire and --

THE COURT: Let's -- I know. And I know Judge Chang already awarded your client counsel fees.

MS. ANTONCIC: In California.

MR. ADVOCATE: Yes.

THE COURT: In California, so Mr. --

(OFF THE RECORD)

(TIME NOTED 3:08:00 P.M.)

(ON THE RECORD)

(TIME NOTED 4:30:02 P.M.)

COURT OFFICER: (Inaudible). Okay, good afternoon. This is cases 30 through 34 on today's calendar (inaudible) matters of Walsh and Russell.

Counsel, your appearance for the record, first,

please?

MS. ANTONCIC: Lydia Antoncic, 8 Madison Avenue, Second Floor, Valhalla, New York 10595, for the Petitioner, Tara Walsh.

Good afternoon, Your Honor.

THE COURT: Okay, good afternoon.

MR. ADVOCATE: Jason Advocate and Katherine Chestnut, for the Respondent, Advocate, LLP, New York, New York 10036, for Stephen Russell, who is here to my left today.

THE COURT: Okay, thank you.

MS. JACKMAN: Good afternoon, Your Honor. Jennifer Jackman, attorney for the child.

THE COURT: Thank you.

COURT OFFICER: All other parties, please raise your right hands. Do you swear or affirm (inaudible) you give in court today will be true and accurate to the best of your knowledge? Ma'am?

T A R A W A L S H, a witness herein, was examined and testified as follows:

MS. WALSH: Yes, I do.

COURT OFFICER: And, sir?

S T E P H E N R U S S E L L, a witness herein, was examined and testified as follows:

MR. RUSSELL: Yes, I do.

THE COURT: All right. Ma'am, your name and address for the record unless your address is confidential?

MS. WALSH: Tara Walsh, [redacted], Chappaqua, New York 10514.

COURT OFFICER: Thank you. And, sir?

MR. RUSSELL: Stephen Russell, [redacted], San Francisco, California 94105.

COURT OFFICER: All right, thank you. Ma'am, (inaudible)?

MS. WALSH: No.

COURT OFFICER: (Inaudible)? All right. Thank you. Everybody can be seated at this time.

THE COURT: Okay, thank you. The parties are now before me. You were working on the schedule.

And did you get a chance to speak with Ms. Farquharson?

MS. JACKMAN: We did, Your Honor, and she was available to do two or three --

THE COURT: Okay, great.

MS. JACKMAN: -- visits per week. She could also do maybe an alternate Saturday. She was driving, did not have her schedule in front of her, so couldn't tell me exactly when she could start.

She did indicate, however, Your Honor, that we just needed to give her an order --

THE COURT: Yes.

MS. JACKMAN: -- and give the parties her contact information --

THE COURT: That's fine.

MS. JACKMAN: -- and she would be able to get started immediately.

THE COURT: Okay, great. Perfect. Okay, Mr. Advocate?

MR. ADVOCATE: (Inaudible) managed to resolve that. We'd like, obviously, to do as many visits as possible, whatever she can do.

THE COURT: That's fine.

(Simultaneous discussion)

MR. ADVOCATE: And, of course, as we discussed, Your Honor, maybe a couple times a week, go over to the mother's house for some observations there as well. We'll have to work out her schedule to see her availability.

THE COURT: That's fine. Ms. Farquharson will work with you. Okay.

MS. ANTONCIC: We have no objection to that, Your Honor.

THE COURT: Okay, great. All right.

MR. ADVOCATE: (Inaudible) a little bit further.

THE COURT: Oh, really? (Inaudible) of seconds?

MS. ANTONCIC: Significant headway, Your Honor.

MR. ADVOCATE: We were able to narrow down the issues (inaudible) before (inaudible) --

THE COURT: All right.

MR. ADVOCATE: -- the child. The parties have agreed to drop their mutual orders of protection.

THE COURT: That was my question, the California matter. It was on for August 29th. What happened with it?

MS. ANTONCIC: So they scheduled to continue, I believe, in two weeks. So -- the 15th or the 19th? 19th.

MR. ADVOCATE: So the parties were going to -- my client will drop that order of protection case in California and any related actions associated with that. The Petitioner, as well, to drop her temporary orders of protection in New York, as well as the violation that goes along with that.

My client will contact -- I believe it was a former criminal case that (inaudible). There were charges that were filed in connection with the (inaudible). He will contact the police and say that he does not wish to press those charges forward, so he will do that expeditiously.

We may need to follow this up with a written stipulation. And I've been told by (inaudible) that that may be required by the California courts out there. We will provide whatever is required to drop the order of

protection out there.

THE COURT: Okay.

MS. ANTONCIC: And, Your Honor, that is correct. I also -- I believe that the charge of -- the criminal charges have been dismissed, but I still, you know, want that assurances as part of the stipulation. So we'll follow up with that.

And it's without prejudice to remove it because I think we agreed to the parties refraining from communication with each other, except as to the child.

MR. ADVOCATE: Yeah, the parties are going to agree to not communicate except with respect to the children's issues -- or the child's issues, ad perhaps, in the future, with any scheduling issues.

THE COURT: Well, that's part of the child's --

MR. ADVOCATE: Yes, it really is.

THE COURT: Okay. All right. Okay. So that will take care of whatever matters are pending in California because (inaudible) --

MR. ADVOCATE: Yes.

THE COURT: -- well, the custody. And you talked about the orders of protection, but there are other matters that were pending in California. I know Judge Chang has put those other matters, custody --

MR. ADVOCATE: And that case will be --

jurisdiction was (inaudible), you know, base, Your Honor.

THE COURT: Okay.

MR. ADVOCATE: Your Honor, (inaudible) we want to proceed with the jurisdictional hearing, especially in light of the communications that went on between the two courts. And I've spoken to my client (inaudible) about that.

And while my client is willing to drop the jurisdictional issue and let this Court address the custody, he would like a more formal visitation arrangement right now.

THE COURT: I'm not following you. I thought we worked out a visitation schedule. What is it --

MR. ADVOCATE: Well, we have one with Ms. --

THE COURT: Supervised visits.

MR. ADVOCATE: -- Delia Farquharson, which is some supervision. But in order to drop the jurisdictional hearing completely, what he wants is -- this is what he wants me to propose to Your Honor.

Because right now, the way the situation is, the Petitioner has -- her parents are in Chappaqua, and she's got the child out there primarily.

THE COURT: All right.

MR. ADVOCATE: He is willing to -- and I want to agree with him on this, Your Honor. He wants his mother to

come from California, and they will then rent a place in Chappaqua or right -- just very close to where Ms. Walsh's parents are, so it's not a very far distance to drive, have her -- his mother there, and his nanny there as well, and maybe, you know, go do something where he gets more time, overnights and access. That's what he wanted your input on.

I've had some discussions with him about whether that's feasible. He says it's totally feasible. He can do that tomorrow. He's got several houses that are available to him. His mother is available to come as well and the nanny is already here.

So he has a household that he can have in place that we thought would give the Judge some assurance that the child is well cared for, because he's got his mother, his nanny, and he can maybe have some overnights and not just have small little events with Ms. Farquharson.

So I wanted to know your input on that, Your Honor.

MS. JACKMAN: Your Honor, I don't -- as (inaudible), there are some serious safety concern issues here and I think that it would jeopardize the child's safety to do anything more than this at this point, without a report to the Court.

THE COURT: All right, fine. I just wanted to

see if this was something that you had discussed and you were in agreement with because that's --

MS. JACKMAN: No.

MR. ADVOCATE: They're not in agreement. I have discussed it. We're not in agreement.

THE COURT: Okay. So, Mr. Advocate, it's not (inaudible). We can always have an evidentiary hearing here on the matter of jurisdiction, so it's really not a deal for me that, you know, your client is willing to drop the jurisdictional issue if I (inaudible).

So we'll keep that on and we'll schedule --

MR. ADVOCATE: Your Honor, one other thing. I think my client is willing to still drop the jurisdictional issue.

However, at the end of -- give us a period (inaudible). I was thinking three weeks. You should have some significant reports from Ms. Farquharson by then. And at that time, if the reports come out to the Court, and they're favorable, I'd like to readdress with this Court at that time giving my client unsupervised access to the child.

Because what we have right now is a situation where there are really, to a large extent, uncorroborated allegations made by the wife that says the father needs supervision. If we get the supervised visitation in place

and they come back positive for him, there really is no need for supervision at that point. At that point, I'd like to ask the Court, based on the reports, if you would do away with the supervision, assuming we could (inaudible) a long-term solution.

In this situation, (inaudible) as well as (inaudible) the forensic group. That's going to take months for us to get realized and going to do a trial at the end of the forensic. That's quite a ways away and he should not have to be under the orders of supervision when there has been no evidentiary basis established in Court. All we have is unsubstantiated claims by the mother, but we haven't had a trial on the issue.

And I think also, if we have good reports, it would give the Court the assurance it needs that he doesn't need supervised visitation at that point.

THE COURT: If we have good reports. It's too premature at this time --

(Simultaneous discussion)

THE COURT: -- we don't even have -- and maybe that's why I -- thank you, Ms. Jackman, I'll let you finish because that's where I was going with that.

MS. JACKMAN: Yeah, I was just going to say, Judge, this is exactly why we called Ms. Farquharson. We have a schedule that we were able to get going immediately.

If it comes back, you're certainly free to make any application. But at this juncture, it's just too soon.

THE COURT: Okay.

MR. ADVOCATE: And I agree with that. I agree with, at this juncture, it's too soon.

THE COURT: Yeah, but I'm not going to make any promises or (inaudible) actually move his mother up here, thinking that three weeks from now I'm going to do this. We're going to meet back and I need to figure out when we come back on my court schedule.

And the other thing that I wanted, before I did anything else, is forensics because, again, Mr. Advocate, the Petitioner is at a little bit of a disadvantage. She doesn't have the (inaudible) the money or the means to move the jurisdiction with the child and I don't think she wants to.

My major concern that I've had in this (inaudible) issue is, your client is (inaudible) jurisdiction of the child.

MR. ADVOCATE: Your Honor, that's true. We would agree to an order that says he can't move the jurisdiction.

THE COURT: No, I -- what (inaudible) I don't need to order it right now. We can't (inaudible) jurisdiction.

MR. ADVOCATE: No, of course he can't and he's

not going to. Your Honor, if it's a concern of the Courts, I'll assure you that he will not do that and I'll consent to an order that says he can't do it.

He is not going to be raising the jurisdiction (inaudible). It's not -- that shouldn't even be a concern, of course, because he can't do it. And if he does do it, this Court would have every right to come down very hard on him, and he would be in a very bad place with this Court.

THE COURT: (Inaudible) he's already (inaudible) jurisdiction. The other issue is, overnight visits, not so keen on that. How old is this baby?

MS. ANTONCIC: Seven months.

MS. JACKMAN: Seven months.

THE COURT: I don't want to (inaudible) overnights at this point. Thank you (inaudible).

(Simultaneous discussion)

MR. ADVOCATE: The only person who has ever inquired of anything is the Petitioner.

THE COURT: Okay, wait. Where are you going with this?

MR. ADVOCATE: There's no reason to --

THE COURT: There is. No, no, no. I'm just saying, I don't do overnights for such a young baby. It's not because of this dad before me. It's just -- just no.

MR. ADVOCATE: What do you mean? No overnights

with the child?

THE COURT: Not at this point.

MR. ADVOCATE: Why, Your Honor?

THE COURT: Let's go through -- let me get some forensics done. Let me see what happens here. I am not going to put on this record that I am preparing to do overnights. The baby is only seven months.

MR. ADVOCATE: Well, I know, but, Your Honor, before the baby was seven months, the baby was living in California --

THE COURT: With both parents.

MR. ADVOCATE: Yes, with both parents, for --

THE COURT: Right.

MR. ADVOCATE: -- four months.

THE COURT: Right.

(Simultaneous discussion)

MS. JACKMAN: Four months?

MS. ANTONCIC: Three months.

MR. ADVOCATE: Almost four months.

THE COURT: I'm only saying, "Right," because I'm listening and I'm saying, "Okay. All right. I heard you," but no --

MR. ADVOCATE: Well, three-and-a-half or --

THE COURT: Well, whichever way --

(Simultaneous discussion)

MR. ADVOCATE: Three-and-a-half months.

THE COURT: Okay. Okay.

MR. ADVOCATE: They were living together as a family. And my client was the one who was caring for the child at night most of the time.

THE COURT: I don't know that.

MR. ADVOCATE: So -- well, I -- I'm telling you that, Your Honor.

(Simultaneous discussion)

THE COURT: No, we weren't there.

MR. ADVOCATE: No, we weren't, but it goes on the motion papers. We've seen the affidavit (inaudible) about that.

THE COURT: Okay.

MR. ADVOCATE: And all I would do is have the Court's (inaudible) as her affidavit.

THE COURT: One second.

MR. ADVOCATE: And then --

THE COURT: One second.

MR. ADVOCATE: Am I mistaken?

THE COURT: We're here. We're in New York. Mom has had the child in New York (inaudible). The AFC said the child is fine and safe.

Listen to me, Mr. Advocate.

MR. ADVOCATE: Okay.

THE COURT: I don't do overnights with such a young child, and especially when I have these kinds of issues. So just take that off and (inaudible). Dad can even get an entire day's visit. I just don't do overnights.

But we're not there yet. Please, let me take this one step at a time. We're going to set the conference for you to come back. You're going to have you visits. So (inaudible) Ms. Farquharson as many as you want, sir, as long as Ms. Farquharson can do it.

Ms. Farquharson is also going to be at their residence and she's going to observe. And then, we're going to set -- we're going to do forensics, also. We're going to get that going.

MS. JACKMAN: And then, Your Honor, I think we also agreed to do drug and substance abuse --

THE COURT: Yes. And --

MS. JACKMAN: -- testing of both --

THE COURT: -- I have the order (inaudible) --

MR. ADVOCATE: We do -- we consented to that, Your Honor, (inaudible) --

MS. JACKMAN: Yeah.

THE COURT: (Inaudible) on today.

MS. JACKMAN: Yes, that's fine.

MR. ADVOCATE: (Inaudible) four or five?

THE COURT: You're going to go (inaudible).

MR. ADVOCATE: Okay.

THE COURT: So (inaudible), yes.

MR. ADVOCATE: Thank you. (Inaudible). Thank you. And, Your Honor, when you (inaudible) the order, if you can just not forget to (inaudible) she can't relocate. The Petitioner can't relocate from the mother's residence for the time being.

MS. ANTONCIC: I think we can do that order, yes.

MR. ADVOCATE: No, I thought the Court was going to do it.

THE COURT: You're going to do it.

MS. JACKMAN: Unless (inaudible) notice, Your Honor.

THE COURT: I thought I was going to plan on something today.

MS. JACKMAN: Oh, that's fine. That's fine (inaudible) --

(Simultaneous discussion)

THE COURT: Do you have it?

(Simultaneous discussion)

MS. JACKMAN: That's fine. That's fine.

THE COURT: Just do an order, please. October 28th --

(Simultaneous discussion)

THE COURT: -- at 11:00 a.m.?

MS. JACKMAN: I'm actually out of --

MR. ADVOCATE: I'm sorry, what was it?

MS. JACKMAN: -- town October 29th.

THE COURT: October 28th.

MS. JACKMAN: I return on the --

(END OF RECORDING - 4:44:00 P.M.)

C E R T I F I C A T E

I, Stephanie J. Handley, certify that the foregoing transcript of proceedings in the Family Court of the State of New York, County of Westchester, in the Matter of Tara Walsh v. Stephen Russell, Docket Nos. O-06917-18, O-06917-18/18A, O-06917-18/18B, and V-07641-18, was prepared using the required transcription equipment and is a true and accurate record of the proceedings. Due to parties' microphones not working properly, several inaudible segments are contained in the aforementioned transcript and are noted as such.

Signature Stephanie Handley, CT

Date: October 3, 2018

AARON'S COURT REPORTING, LLC.
175 Main Street, 7th Floor, Suite 18
White Plains, New York 10601

A

abilities (1)
25:24
ability (1)
13:16
able (7)
9:19;11:18;20:6;
28:5;33:5;34:1;39:25
Absolutely (4)
15:14,17,20;27:7
absurd (1)
27:7
abuse (2)
26:12;44:16
access (15)
3:7,20;5:25;6:2;9:8,
11,14;10:13;11:13;
12:4;13:7;14:11;
26:17;37:6;38:20
accurate (1)
31:17
action (1)
6:9
actions (1)
34:12
actually (7)
12:25;13:2;14:7;
15:5;19:1;40:7;46:2
ad (1)
35:13
address (5)
6:4;26:15;32:2,2;
36:9
advance (1)
11:22
ADVOCATE (119)
3:9;4:7,8,13;11:9,
25;12:15,18,22,25;
14:14,23;15:1,9,15,
23;16:5,21,25;17:2,4,
8;18:6;19:16,18,22,
25;20:2,8,17;21:3,6,9,
12,14,23,25;22:9,12,
18,23;23:5,9,13,16,
18,20;24:19,22;25:11,
15;26:2,5,23;27:1,3,6,
13,14,17;28:3,5,11,
14,20,23,25;29:4,22;
30:16;31:7,7,8;33:8,9,
14,23;34:1,4,10;
35:11,16,20,25;36:3,
14,16,24;38:4,6,12;
40:4,12,20,25;41:17,
21,25;42:3,8,12,14,
19,23;43:1,3,7,11,15,
18,20,24,25;44:20,25;
45:2,4,10;46:3
Advocate's (1)
26:15
AFC (4)
19:11;26:24;29:25;
43:22
AFC's (1)
30:4
affidavit (2)
43:12,16
affirm (1)
31:16
afternoon (5)
3:2;30:23;31:5,6,12
again (2)
9:23;40:12
agencies (2)
15:24;16:2
agree (12)
8:6,24;13:8,12;
15:20;26:11,13;
35:12;36:25;40:4,4,
21
agreed (5)
5:2;9:20;34:5;35:9;
44:16
agreement (7)
7:16;8:7,9;27:11;
38:2,4,5
a-half (1)
26:19
alerting (1)
10:22
allegation (1)
6:4
allegations (3)
13:22,25;38:24
alleviated (1)
13:10
allow (1)
11:21
allowed (1)
14:14
Almost (1)
42:19
along (4)
14:19;26:14;28:1;
34:15
alternate (1)
32:21
always (3)
4:5;9:8;38:7
amount (1)
26:17
ANTONCIC (47)
3:24;4:2,5;5:14,20,
23;7:12;8:8,19;10:10,
24;11:6,8;13:18,21,
24;14:10,22;15:18;
16:14,17;17:15,19,21;
18:19;19:12;21:19,
21;22:2,5,13,17,24;
26:9;28:18;30:8,11,
15;31:2,2;33:20,25;
34:8;35:3;41:12;
42:18;45:9
anymore (3)
5:2;9:5;14:4
apparently (1)
7:15
appearance (2)
4:3;30:25
application (2)
30:9;40:2
appointed (1)
29:15
area (1)
19:20
arguments (1)
11:20
arrangement (1)
36:10
aspect (1)
22:19
assessment (2)
15:10,10
assistance (1)
24:3
associated (1)
34:12
assume (1)
23:22
assuming (2)
22:14;39:4
assurance (2)
37:14;39:15
assurances (1)
35:6
assure (1)
41:2
attend (1)
11:18
attention (3)
9:8;10:19;21:4
attorney (2)
4:21;31:13
attorney's (1)
3:3
August (1)
34:7
authority (1)
18:14
availability (2)
24:7;33:17
available (11)
4:6;13:11;17:22;
18:5;20:3,20;21:1,4;
32:18;37:10,11
Avenue (1)
31:2
awarded (1)
30:14
aware (1)
18:7
away (2)
39:4,9

B

babies (2)
27:1,20
baby (13)
3:12;7:21,22,25;
14:5,6,16;19:4;41:11,
23;42:7,9,9
babysitter (6)
3:7;6:16;12:10,13,
13;20:19
back (14)
9:23,23,25;12:20;
14:12;25:23;27:9;
28:5,22;39:1;40:1,9,
10;44:8
bad (1)
41:8
base (1)
36:1
based (1)
39:3
basis (2)
3:19;39:11
beautiful (1)
19:4
became (1)
4:16
becomes (1)
21:14
behavior (4)
6:12;13:22;14:1,5
believes (1)
5:25
bench (2)
11:17,23
best (2)
10:1;31:17
beyond (2)
4:6;17:9
big (1)
25:16
bills (1)
30:4
bit (5)
16:2;18:8,12;33:23;
40:13
bizarre (1)
14:4
board (1)
16:3
bond (1)
27:20
bonding (1)
28:2
born (2)
14:5;27:8
both (15)
6:17,19,20;7:3;
10:4;14:13;15:10;
17:8;22:7;23:1;25:16;
29:16;42:11,12;44:18
bother (1)
27:15
bottom (1)
9:1
breakdown (1)
9:9
briefly (3)
6:4;22:18;23:6
bring (2)
10:18;25:6
brings (3)
5:6,10;11:21
broke (1)
9:4
broken (1)
10:16
brought (4)
3:19;5:3;9:7,10
busy (1)
25:7

C

calendar (1)
30:23
California (21)
3:25;4:21;5:4;8:8;
9:15,23;21:18;22:8,
10,20;27:9;30:15,17;
32:7;34:6,12,24;
35:19,23;37:1;42:10
call (4)
11:10;18:4;29:3,6
called (1)
39:24
calling (1)
6:7
came (6)
3:6;4:6,14,24;9:23;
27:9
can (29)
7:21;10:16,19;
11:12,13,23;16:18,22;
17:9;19:14;21:1;
22:12,18;25:3,5,10;
26:2,13,13;32:12;
33:11;37:9,13,16;
38:7;44:3,10;45:6,9
can't (9)
18:14;20:20;40:21,
23,25;41:3,6;45:6,7
care (2)
13:17;35:18
cared (1)
37:15
caring (2)
8:12;43:4
carve (1)
25:10
case (12)
14:14;17:22;22:20;
23:22;25:12,13,19;
29:13;30:3;34:11,17;
35:25
cases (2)
11:23;30:23
cause (1)
10:3

certainly (1)
40:1
chambers (1)
3:6
chance (3)
23:6;28:21;32:15
Chang (2)
30:14;35:23
change (1)
10:23
Chappaqua (4)
19:22;32:4;36:21;
37:2
charge (1)
35:4
charges (3)
34:17,20;35:5
Chestnut (23)
4:7,9,14,20;5:7,11,
13;6:5,17,20,24;7:2,7,
10,13,20,23;8:1;9:13;
10:25;17:17;20:16;
31:8
child (26)
8:12,14;10:5,8,11;
13:17;16:23;26:3,18;
27:7,8,8,10;31:13;
34:4;35:10;36:22;
37:15;38:21;40:15,
19;42:1;43:5,22,23;
44:2
child's (3)
35:13,15;37:22
childcare (1)
13:11
children (2)
27:1,19
children's (1)
35:13
claims (1)
39:12
clarify (1)
9:13
clear (3)
4:16;8:23;12:19
client (34)
4:14,18,20;5:3,25;
6:16;7:13,16;8:6,13,
17;9:14;10:7;14:6,19;
15:4,18;18:20;19:10;
23:5;25:9;26:10,15;
30:8,14;34:11,16;
36:6,8;38:9,13,20;
40:18;43:4
client's (1)
6:5
clients (1)
8:4
close (3)
18:8;19:25;37:2
comfort (1)
25:25
comfortable (1)
8:16
coming (1)
9:15
communicate (1)
35:12
communication (2)
12:5;35:10
communications (1)
36:5
completely (1)
36:18
complicated (1)
11:24
concern (6)
13:16;26:15;37:21;
40:17;41:1,5
concerned (1)
18:12
concerns (2)
8:11;13:9
conference (6)
3:3;11:1,7,20,24;
44:7
conferences (1)
11:16
confidential (1)
32:2
connection (1)
34:18
consent (2)
7:17;41:2
consented (2)
7:19;44:20
contact (5)
4:24;16:18;33:2;
34:16,19
contacted (1)
4:23
continue (1)
34:8
control (1)
8:5
Corson (1)
22:13
couldn't (4)
5:6;9:10,22;32:22
counsel (6)
5:1;8:4,8;29:16;
30:14,25
counselors (1)
29:12
counterpart (1)
22:17
counterparts (1)
22:8
county (1)
15:24
couple (6)
3:4;4:10;7:21;8:10;
19:19;33:15
course (4)
18:10;33:14;40:25;
41:6
COURT (218)
3:2,10,14,16,18;4:1,
3,4,11,19;5:5,10,12,
17,19,21;6:15,19,22,
25;7:6,8,11,18,22,24;
8:4,17;9:6;10:15,19;
11:2,4,5,7,12;12:2,12,
16,21,24;13:8,13,15,
20,23;14:10,12,25;
15:3,12,14,17,20;
16:2,9,11,20;17:1,3,7,
10,13,18,23;18:2,4,7,
14,16,23;19:6,9,11,
13,17,21,24;20:1,5,
10,14,19,23,25;21:3,
8,10,11,13,16,18;
22:7,11,19,20,22,25;
23:2,8,10,15,17;24:1,
7,9,13,15,18;25:2,5,
14,24;26:1,4,6,18,24;
27:5,12,14,19,23;
28:6,8,13,16,17,19,
21;29:2,5,7,10,14,17;
30:6,10,13,17,22;
31:6,11,14,15,17,22;
32:1,5,8,11,13,19;
33:1,4,7,12,18,22,24;
34:3,6;35:2,15,17,21;
36:2,9,12,15,23;
37:24,25;38:6,18,19;
39:3,11,15,17,20;
40:3,6,10,22;41:7,8,9,
14,19,22;42:2,4,11,
13,15,20,24;43:2,6,
10,14,17,19,21;44:1,
17,19,23;45:1,3,10,
12,15,20,23;46:1,5
Court's (1)
43:16
court-appointed (1)
14:7
court-ordered (1)
26:3
courts (3)
34:24;36:6;41:1
cover (1)
8:19
craft (1)
24:24
criminal (2)
34:17;35:4
cross (1)
10:3
current (1)
7:11
custody (7)
10:4;14:15;20:3;
25:13;35:21,24;36:10
cut (2)
9:6;23:18

D

dad (7)
12:4,14;19:15;
27:23;28:2;41:24;
44:3
dad's (1)
15:16
dare (1)
4:25
dates (1)
7:21
daughter (2)
6:1;20:7
day (3)
11:15,22;27:8
day's (1)
44:4
days (1)
8:10
deal (2)
3:5;38:9
decent (2)
14:24;15:5
decided (1)
15:3
declaration (1)
14:2
declined (1)
10:13
definitely (1)
11:25
Delia (5)
16:9,11,15,20;
36:16
depending (1)
26:17
desire (1)
10:21
despite (1)
5:24
didn't (5)
8:6,11;22:2,14,15
disadvantage (1)
40:13
disclose (1)
8:16
discuss (1)
23:7
discussed (3)
33:14;38:1,5
discussing (1)
6:14
discussion (42)
5:18;6:18;7:5;10:9;
11:3;14:9;17:11,14,
20;18:3;20:15,18,22,
24;21:2,7,20;22:4,16;
23:9;24:11,14,17,20;
25:4;28:4,10,12,15,
24;29:9,21;30:5;
33:13;39:19;41:16;
42:16,25;43:9;45:19,
21,25
discussions (1)
37:8
disdain (1)
4:18
dismissed (1)
35:5
dispute (2)
6:13;9:3
disregard (1)
27:16
disregarding (3)
27:18,19,25
distance (1)
37:3
doesn't (11)
6:22;8:13,14;11:21;
13:6,16;17:5;26:21;
27:6;39:15;40:14
Don't (26)
4:24;6:7;8:1;12:3;
13:12,15;14:4;17:25;
18:17,20,21;21:25;
25:20;27:2;28:11;
29:19,24;37:20;
39:20;40:15,22;
41:14,23;43:6;44:1,4
done (8)
5:20,22,24;8:7;
9:12;11:21;25:7;42:5
down (5)
9:4;10:16;23:3;
34:1;41:7
draft (1)
22:5
drive (1)
37:3
driving (1)
32:21
drop (9)
5:15;34:5,11,13,25;
36:8,17;38:9,13
drug (3)
13:24;26:11;44:16
dynamics (1)
17:5

E

either (2)
8:14;12:19
else (4)
17:23;20:9;23:23;
40:12
emergencies (1)
11:4
emergency (10)
3:19,20;6:2;9:8,11;
10:4;25:17;28:16,18;
29:1
employee (3)
6:25;12:15;20:21
end (4)
26:19;38:15;39:9;
46:7

ended (1)
9:23
entire (1)
44:4
envision (1)
7:1
erratic (1)
13:21
especially (4)
25:8;27:20;36:4;
44:2
essentially (1)
4:23
established (2)
13:1;39:11
even (9)
5:12;6:7;12:2;
14:14,19;15:1;39:20;
41:5;44:4
events (1)
37:17
eventually (1)
13:8
everybody (2)
25:15;32:12
everyone (2)
3:2;5:15
evidentiary (4)
13:8;23:3;38:7;
39:11
exactly (4)
5:14;27:22;32:23;
39:24
examined (2)
31:20,24
except (3)
18:1;35:10,12
expected (2)
5:15;6:2
expeditiously (1)
34:21
explain (1)
23:16
expressed (2)
4:17,19
extent (1)
38:23

F

facilitate (1)
13:7
family (3)
17:5;19:2;43:4
far (4)
23:11;24:7;25:9;
37:3
F-A-R- (1)
17:15
F-A-R-Q (2)
17:18,19
Farquharson (23)
16:9,12,16,20,22;
19:14;20:12,25;21:3;
24:4,15;25:1;28:1;
29:7;32:16;33:18;
36:16;37:17;38:17;
39:24;44:9,10,11
Farquharson's (1)
17:13
father (16)
3:7,24;4:5,16,23,
24;6:5,6;8:5;12:5;
13:10,16;14:16,19,24;
38:24
father's (1)
13:4
favorable (1)
38:19
feasible (2)
37:9,9
fee (1)
30:8
feel (3)
5:17;13:25;25:17
feeling (1)
23:13
fees (1)
30:14
felt (1)
5:4
few (5)
14:3;15:23;23:21;
28:6,25
figure (4)
10:19;25:18;26:25;
40:9
File (2)
11:11,14
filed (1)
34:18
finalize (1)
9:22
find (1)
30:2
fine (12)
17:7;20:10;33:4,12,
18;37:25;43:23;
44:24;45:17,17,22,22
finish (1)
39:21
first (3)
3:5;9:15;30:25
five (2)
29:24;44:25
Floor (1)
31:3
focus (1)
25:13
follow (2)
34:22;35:7
following (1)
36:12
follows (2)
31:20,24
forensic (2)
39:7,9
Forensics (6)
26:7,9;28:9;40:12;
42:5;44:13
forget (1)
45:6
formal (1)
36:10
former (1)
34:17
forward (5)
8:25;10:2;22:24;
26:12;34:20
four (4)
42:14,17,19;44:25
Francisco (1)
32:7
frankly (1)
6:11
free (1)
40:1
frequent (1)
26:22
front (2)
8:2;32:22
full-time (2)
7:3;13:11
further (2)
10:2;33:23
future (1)
35:14

G

gave (1)
7:18
general (1)
27:1
gets (1)
37:5
giving (1)
38:20
gladly (1)
12:2
goes (3)
25:22;34:14;43:11
good (13)
3:2;18:24;19:11,21;
20:25;26:22;28:7;
30:22;31:5,6,12;
39:14,17
grandfather (4)
3:11,15;9:2;12:6
grandparents (1)
19:8
great (9)
14:20;15:1,4;21:9;
23:17;26:7;32:19;
33:7,22
group (1)
39:7
growing (1)
19:4
guess (1)
20:11

H

hallucinations (1)
13:24
handle (2)
4:9;22:19
handling (1)
22:20
hands (1)
31:16
handwritten (1)
12:3
happen (1)
9:9
happened (1)
34:7
happens (3)
28:2,8;42:5
happy (2)
17:2;19:4
harassing (1)
6:7
harassment (1)
4:25
hard (1)
41:7
harm (1)
8:14
hasn't (3)
12:25;27:10,23
haven't (3)
5:11;23:6;39:13
he's (15)
6:1,11,11;9:24;
10:15;13:10,21;
19:16,18;20:2;25:25;
37:10,15;40:25;41:9
headway (1)
33:25
hear (3)
11:20;12:7;27:14
heard (2)
11:14;42:21
hearing (7)
13:8,13,23;23:3;
36:4,18;38:7
hears (1)
11:15
help (1)
13:11
herein (2)
31:19,23
herself (1)
26:11
highly (1)
16:11
himself (2)
4:20;20:2
hired (3)
6:16;7:14,14
Hold (1)
21:16
home (1)
19:3
honest (1)
5:19
Honor (51)
3:25;4:9,13,14;
5:15;6:17;7:2,13;8:1;
9:13;10:11,24;12:11,
19;13:19;15:19,25;
19:16;21:6,19;23:6;
24:24;26:10,23;
27:17;29:23;30:9;
31:5,12;32:17,24;
33:15,21,25;35:3;
36:1,3,19,25;37:19,
20;38:12;40:20;41:1;
42:3,8;43:8;44:15,21;
45:5,14
hope (1)
22:7
hopes (1)
5:8
hoping (1)
29:19
hotel (2)
8:3;19:19
hour (1)
7:4
hour-and- (1)
26:18
hour-and-a-half (1)
10:12
hours (3)
8:21;10:13;25:21
house (5)
15:13,16;19:7,16;
33:16
household (1)
37:13
houses (2)
19:19;37:10

I

I'd (6)
28:3,5;29:23;30:2;
38:19;39:2
I'll (10)
4:7;12:7;23:3,16;
27:18;29:1,6;39:21;
41:2,2
I'm (36)
4:8;8:20;9:6;11:15,
17,18,18;13:23;
14:20;16:3,14;17:2;
19:3;20:10,14,19;
21:17;22:14;25:22;
26:24;27:19,24,25;
28:9,13;29:19;36:12;
40:6,8;41:22;42:20,
20,21;43:7;46:2,3

I've (5)
19:1;34:23;36:6;
37:8;40:17
idea (5)
12:18;18:24;19:11;
23:11;26:22
immediately (2)
33:6;39:25
inappropriate (3)
5:21;6:12;8:15
inaudible (101)
3:19,20;7:23;9:21;
11:10,12;12:4;13:13;
14:15,23;15:3,9,11;
16:8;17:3,4,8,12;18:1,
6,7,10,16;19:9,23;
20:8,23;21:1,1;22:1,
21,23,24;23:12,14,25;
24:2,12;25:6,24;
26:14;27:4;28:9;29:4,
8,20,22,23,24,25;
30:22,24;31:16;32:9,
11;33:9,23,24;34:2,2,
17,18,23;35:19;36:1,
3,6;37:21;38:7,10,16;
39:4,6,7;40:7,14,18,
18,22,23;41:5,9,9,14,
15;43:12,16,22;44:3,
9,19,21,23,25;45:1,3,
4,5,6,13,18
increasing (1)
26:16
indicate (1)
32:24
individual (1)
16:4
individuals (1)
17:25
information (2)
16:19;33:3
input (2)
37:6,18
inquired (1)
41:18
instead (1)
4:22
interacts (1)
16:23
interim (1)
9:14
into (2)
3:6;25:10
Isn't (1)
7:9
issue (19)
3:5,18;6:15;10:22;
18:21;21:14,16;
23:19;25:11,13,16;
26:7,7;36:9;38:10,14;
39:13;40:18;41:10
issues (9)
3:4;14:17;16:21;
34:2;35:13,13,14;
37:21;44:3
it's (28)
6:8,25;12:2,15,18;
13:17,18;18:18,24;
19:11;23:20;25:17;
26:7;27:6,24;30:4;
35:8;37:3,9;38:6,8;
39:17;40:2,5;41:1,5,
23,24

J

JACKMAN (60)
3:13,15,17;8:10,22;
9:7;11:11;12:8,11;
16:7,10,13,16,18;
17:12,24,25;19:1,7;
20:13;21:24;24:3,5,8,
10,12,18,21,23;26:6,
25;27:22,25;29:6,8,
11,15,18;31:12,13;
32:17,20;33:2,5;
37:20;38:3;39:21,23;
41:13;42:17;44:15,
18,22,24;45:13,17,22;
46:2,4,6
Jason (2)
20:16;31:7
Jennifer (2)
16:5;31:13
jeopardize (1)
37:22
Judge (12)
9:1;10:22;11:15,19;
17:21;18:6,24;29:11;
30:13;35:23;37:14;
39:24
July (1)
9:25
juncture (2)
40:2,5
jurisdiction (11)
21:17;23:2;26:13;
36:1;38:8;40:15,19,
21,24;41:4,10
jurisdictional (6)
22:19;36:4,9,17;
38:10,13

K

Katherine (2)
4:9;31:7
keen (1)
41:11
keep (1)
38:11
kind (2)
4:6;9:16
kinds (1)
44:2
K-I-S-O-N (1)
17:16
knowledge (1)
31:18
knows (2)
5:12;25:16

L

large (1)
38:23
last (6)
3:6;4:10;9:24;22:1,
10;30:1
later (1)
27:9
lawyer (1)
22:10
leave (3)
18:12;20:11;26:24
left (1)
31:9
legal (1)
6:9
let's (5)
13:13;15:23;17:10;
30:13;42:4
light (1)
36:5
limited (1)
8:22
limits (1)
25:21
line (1)
9:1
Listen (1)
43:24
listening (1)
42:21
little (7)
16:2;18:8,12;30:4;
33:23;37:17;40:13
lives (2)
3:24;4:1
living (2)
42:9;43:3
LLP (1)
31:8
logistically (2)
23:20;24:23
long (2)
10:7;44:10
long-term (1)
39:5
looking (3)
16:7;19:19;25:19
loop (1)
4:10
Low (12)
17:11,14,20;18:3;
20:15,18,22,24;24:20;
25:4;28:10,12
Lydia (1)
31:2

M

Ma'am (3)
31:18;32:1,8
Madison (1)
31:2
major (2)
25:11;40:17
managed (1)
33:9
manner (1)
11:24
many (2)
33:10;44:9
maternal (2)
3:13;9:2
matter (2)
34:7;38:8
matters (4)
30:24;35:18,22,24
may (2)
34:22,24
maybe (8)
9:17;17:21;18:8;
32:21;33:15;37:5,16;
39:20
mean (7)
6:19;8:20;12:16;
15:8;18:19;22:15;
41:25
means (2)
29:19;40:14
meet (2)
12:9;40:9
memory (1)
14:21
met (1)
8:10
mid-August (2)
4:15;9:15
might (2)
19:10;24:3
minutes (1)
29:1
Mission (1)
32:6
mistaken (1)
43:20
modified (1)
6:3
mom (4)
15:2;16:22;18:16;
43:21
mom's (2)
15:13;16:23
money (2)
30:1;40:14
months (14)
7:7;25:20,22;27:9;
39:8;41:12,13;42:7,9,
14,17,18,19;43:1
more (6)
8:20;13:17,18;
36:10;37:5,23
morning (1)
11:14
most (2)
27:21;43:5
mother (14)
4:21,22,23;8:23;
13:4;14:16,18;19:8;
36:25;37:4,11,15;
39:12;40:7
mother's (6)
4:16;13:3,9,15;
33:16;45:7
motion (6)
10:2,4;11:11;12:22;
29:20;43:12
move (5)
17:9;26:14;40:7,14,
21
moving (2)
9:16;23:23
multi-millionaire (1)
30:11
mutual (3)
6:13;7:1;34:5

N

name (2)
16:14;32:1
nanny (11)
5:3,6,10;6:20,23,
23;7:2,11;37:4,12,16
narrow (1)
34:1
necessary (1)
13:12
need (20)
3:4;10:21;12:6;
13:6;15:21;17:5;
19:13;20:12;21:11;
24:3,5;25:17;27:1,2;
28:9;34:22;39:2,16;
40:9,23
needed (1)
32:25
needs (5)
9:9;12:4,22;38:24;
39:15
neglected (1)
6:6
negotiate (1)
9:14
neutral (1)
14:7
New (8)
4:14;31:3,8,8;32:4;
34:14;43:21,22
Next (7)
11:25;21:14,16;
23:21,22;25:12;26:8
night (3)

22:1,10;43:5
non-disclosure (1)
7:15
NOTED (2)
30:19,21
notice (1)
45:13
number (6)
10:7,10;24:13;25:3;
29:24,24

O

object (1)
23:3
objecting (1)
23:2
objection (3)
15:18;26:16;33:20
observations (1)
33:16
observe (3)
16:22;17:4;44:12
obviously (4)
7:17;17:5;25:16;
33:10
October (3)
45:23;46:4,5
off (5)
8:18;11:23;23:18;
30:18;44:3
offered (1)
10:14
office (2)
4:24;16:19
OFFICER (7)
28:17;30:22;31:15,
22;32:5,8,11
officers (1)
14:3
old (2)
22:21;41:11
One (27)
6:22;7:18,24;9:24;
10:6,7,10,12;14:3,3;
15:25;16:3,21;17:12;
18:6;19:20,22;21:16;
27:3,12;28:13;36:14;
38:12;43:4,17,19;
44:7
only (11)
3:3;7:20,20;9:24;
10:6,12;14:13;29:22;
41:17;42:7,20
operative (2)
7:6,8
opportunity (2)
12:9;25:8
opposed (1)
20:19
order (21)
9:2;10:3;18:11,13,
17;21:17,25;22:5;
24:12,24;32:25;
34:11,25;36:17;
40:21,23;41:3;44:19;
45:5,9,23
ordered (1)
3:10
orders (4)
34:5,13;35:22;
39:10
out (22)
3:6;4:6,9,10;8:5;
9:18;10:19;20:3,8;
24:2;25:6,18;26:25;
30:2;33:17;34:24;
35:1;36:13,22;38:18;
40:9;46:2
outlined (1)
14:4
outside (1)
6:14
over (5)
3:4;7:7;8:9;25:13;
33:15
overnight (1)
41:10
overnights (8)
37:6,16;41:15,23,
25;42:7;44:1,5

P

paid (1)
12:13
papers (2)
6:8;43:12
parenting (1)
25:24
parents (10)
13:5;15:6,6;16:24;
18:10,14;36:21;37:3;
42:11,12
parents' (1)
18:13
Parkinson (1)
16:17
part (2)
35:6,15
particularly (1)
15:25
parties (18)
6:17,19,20;10:20;
11:19;12:4;14:13;
20:11;24:1;29:12,16;
31:15;32:13;33:2;
34:4,10;35:9,11
partner (1)
4:8
party (1)
7:1
pay (1)
6:22
paying (1)
29:13
pays (1)
6:23
pending (3)
11:23;35:18,23
per (1)
32:20
percent (3)
12:15;15:21;29:25
perfect (2)
20:5;33:7
perhaps (1)
35:13
period (4)
17:6;25:23;27:10;
38:15
periods (1)
16:22
person (4)
6:13;15:4;27:20;
41:17
Petitioner (8)
14:14;18:9;31:3;
34:13;36:21;40:13;
41:18;45:7
ph (2)
7:14;22:14
phone (3)
24:16;25:3,6
physical (1)
10:4
place (5)
25:20;37:1,13;
38:25;41:8
plan (1)
45:15
please (4)
31:1,15;44:6;45:23
PM (4)
3:1;30:19,21;46:7
point (12)
4:16;5:1,14;9:20;
14:18;18:1;37:23;
39:2,2,16;41:15;42:2
police (1)
34:19
position (2)
4:12;27:7
positive (1)
39:1
possible (1)
33:11
possibly (2)
5:4;25:10
practices (1)
10:2
prefer (1)
16:1
preferences (1)
25:9
prejudice (1)
35:8
premature (1)
39:18
prepare (1)
17:21
preparing (1)
42:6
present (2)
15:11,12
press (1)
34:20
pretty (1)
25:7
primarily (1)
36:22
prior (2)
4:3;9:14
priority (2)
10:7,10
private (2)
29:12,16
probably (1)
26:22
problem (3)
10:15;11:13;18:17
procedure (1)
11:9
proceed (1)
36:4
profanity (1)
6:8
promises (1)
40:7
propose (1)
36:19
proposed (1)
12:9
protection (5)
34:5,11,14;35:1,22
provide (1)
34:25
provider (1)
13:11
purpose (3)
5:6,7;8:23
put (3)
27:25;35:24;42:6

Q

quick (1)
23:9
quickly (1)
20:23
quite (3)
6:11;8:23;39:9
quo (1)
18:25

R

raise (3)
25:3,5;31:15
raised (1)
26:6
raising (1)
41:4
readdress (1)
38:19
ready (1)
21:4
realized (1)
39:8
really (14)
3:20;5:21;11:20;
23:4;25:12,12,13;
26:21;27:4;33:24;
35:16;38:8,23;39:1
reason (3)
8:9;14:13;41:21
receive (1)
22:5
recently (1)
19:3
record (6)
12:8;30:18,20,25;
32:2;42:6
RECORDING (1)
46:7
refraining (1)
35:9
regarding (1)
13:10
regardless (1)
24:6
related (1)
34:12
relationship (6)
9:4;10:16;14:24;
15:1,5;20:6
relocate (3)
18:14;45:6,7
remove (1)
35:8
rent (1)
37:1
repeat (1)
6:8
report (4)
14:12;25:23;28:7;
37:24
reporting (1)
15:12
reports (7)
14:11;26:17;38:17,
18;39:3,14,17
request (7)
9:11;10:25;11:13;
13:2,3,5;26:10
required (2)
34:24,25
requires (1)
18:11
reservation (1)
19:10
reservations (1)
12:13
residence (2)
44:12;45:7

resolve (2)
10:1;33:9
respect (1)
35:12
respond (2)
27:2,16
Respondent (1)
31:8
resulted (1)
10:6
return (1)
46:6
right (41)
3:2,16;7:9;10:15;
12:21;14:5,25;18:5,9;
19:9,14,18;21:8,11;
22:25;23:10,17;24:1;
25:13;29:2,2,8;31:16;
32:1,8,11;33:22;34:3;
35:17;36:11,20,23;
37:2,25;38:22;40:23;
41:7;42:13,15,20,21
Road (1)
32:3
room (2)
8:3;25:16
run (2)
18:19,23
Russell (9)
6:6;8:15;29:18;
30:11,24;31:9,25;
32:6,6
Russell's (1)
14:1

S

safe (4)
14:7,17;19:5;43:23
safety (2)
37:21,23
same (2)
4:12;11:15
San (1)
32:7
satisfied (1)
19:3
Saturday (1)
32:21
saw (1)
19:3
saying (5)
24:25;27:25;41:23;
42:20,21
schedule (12)
3:9;20:9;23:24;
25:10;28:1;32:14,22;
33:17;36:13;38:11;
39:25;40:10
scheduled (3)
10:11;11:22;34:8
scheduling (1)
35:14
seated (1)
32:12
second (12)
6:1,22;7:18,24;
12:20;21:16;27:12;
28:13;29:3;31:3;
43:17,19
seconds (1)
33:24
security (1)
14:3
seeing (2)
15:13,15
seeking (1)
10:4
selected (1)
7:3
selves (1)
10:22
send (1)
10:25
sent (3)
6:6,9;8:8
serious (3)
13:21,25;37:21
set (3)
23:3;44:7,13
seven (5)
17:6;41:12,13;42:7,
9
several (3)
6:7;25:21;37:10
she's (12)
8:16;14:15;17:22;
18:5,9,10;20:21;21:4;
25:7;29:25;36:21;
44:12
short (2)
25:23;26:22
should've (1)
9:7
shouldn't (2)
5:2;41:5
show (1)
10:3
showed (1)
5:15
shown (1)
6:2
side (3)
13:3,4,5
sides (3)
15:10;17:8;25:17
sign (1)
8:18
signed (1)
7:16
significant (4)
29:19;30:1;33:25;
38:17
Simultaneous (29)
5:18;6:18;7:5;10:9;
11:3;14:9;21:2,7,20;
22:4,16;24:11,14,17;
28:4,15,24;29:9,21;
30:5;33:13;39:19;
41:16;42:16,25;43:9;
45:19,21,25
single (1)
9:24
situation (6)
9:25;20:4;25:17;
36:20;38:22;39:6
skilled (1)
26:25
slowly (2)
9:16;16:2
small (2)
29:23;37:17
solution (1)
39:5
somebody (2)
3:23;9:7
someone (3)
12:6;14:12;21:5
soon (2)
40:2,5
sorry (5)
8:20;9:6;16:14;
28:13;46:3
sort (2)
20:3;21:14
speak (3)
23:5;29:12;32:15
speaking (1)
18:22
specific (1)
9:2
specifically (1)
7:23
spell (1)
17:15
spend (1)
23:4
spoke (2)
22:13;27:15
spoken (2)
19:1;36:6
stake (1)
30:4
start (2)
9:17;32:23
started (2)
26:14;33:6
starts (1)
9:18
state (2)
13:9;29:15
statement (1)
7:19
status (1)
18:25
staying (1)
18:10
step (4)
12:20;23:22;25:12;
44:7
Stephen (2)
31:9;32:6
still (4)
16:23;19:15;35:5;
38:13
stip (2)
8:18;9:22
stipulation (5)
3:6;8:2,24;34:23;
35:6
strange (1)
27:24
Street (1)
32:7
submitted (1)
14:2
substance (2)
26:12;44:16
suggest (2)
16:11;17:23
suggested (1)
14:7
suggestions (1)
16:6
summarize (1)
22:18
Sunday (1)
10:12
supervise (7)
4:17,22;5:4,8;9:3,4;
12:6
supervised (12)
3:11,17;7:1;12:17,
19;13:3,4;15:24;
24:25;36:15;38:25;
39:16
supervising (5)
5:2;14:16,20;15:6,
11
supervision (12)
9:21;12:23;13:6,12;
18:13;25:20;26:3;
36:17;38:25;39:2,4,
10
supervisor (1)
20:20
supervisors (1)
16:4
supervisory (1)
15:11
supposed (2)
3:15;9:3
sure (9)
10:20;13:9;14:6,16;
18:25;19:12;21:17;
25:8;28:2
SVE (2)
18:1,2
swear (1)
31:16

T

table (1)
17:9
Tahaya (6)
7:14,15,18;8:10,11,
13
talk (1)
28:25
talked (1)
35:21
Tara (3)
18:9;31:4;32:3
Tara's (2)
4:5;6:6
telephone (6)
10:25;11:7,16,20,
24;24:13
telling (1)
43:7
temporary (3)
10:4;11:14;34:13
ten (1)
29:25
terms (1)
16:3
terrific (1)
21:6
testified (2)
31:20,24
testing (2)
26:12;44:18
texts (1)
6:7
that's (38)
4:6;5:14,17;6:24,
25;8:16,20;11:2;
12:16;13:15,23;
15:21;17:3,7;21:6,9;
24:1;25:16;26:8;27:7;
30:3;33:4,12,18;
35:15;37:6,9;38:2;
39:7,9,21,22;40:20;
44:24;45:17,17,22,22
There's (9)
9:3;11:17,22;12:5,
22;18:11,25;23:18;
41:21
they're (8)
9:19;15:13,15;19:2,
2;27:21;38:4,19
thinking (4)
16:3;24:24;38:16;
40:8
thought (4)
36:12;37:14;45:10,
15
threatening (1)
6:9
three (8)
7:7;10:12;25:19,21;
32:18;38:16;40:8;

42:18
three-and-a-half (2)
42:23;43:1
timeframes (1)
25:7
times (2)
25:22;33:15
timing (1)
25:18
tirelessly (1)
5:24
today (6)
20:9;24:24;31:10,17;44:23;45:16
today's (1)
30:23
together (4)
7:3;19:2;28:1;43:3
told (2)
27:15;34:23
tomorrow (2)
9:17;37:10
took (1)
10:6
totally (3)
4:10;15:20;37:9
touch (1)
22:7
towards (2)
21:4;23:23
town (1)
46:4
transcript (5)
21:18;22:1,2,6;23:11
trial (3)
25:19;39:8,13
true (2)
31:17;40:20
try (3)
10:1;25:6;29:5
trying (4)
5:7;9:14;10:5;26:25
turn (1)
21:4
twenty-four (1)
17:6
two (7)
4:15;8:21;17:22;25:21;32:18;34:9;36:5
two-hour (1)
8:19
type (2)
11:19;12:3

U

Uh-oh (1)
28:18
uncorroborated (1)
38:23
under (1)
39:10
understandable (1)
26:20
understood (1)
10:24
unfortunately (1)
10:6
unilaterally (1)
10:21
unless (3)
11:22;32:2;45:13
unsubstantiated (1)
39:12
unsupervised (2)
28:7;38:20
up (8)
5:15;6:2;9:23;12:3;15:24;34:22;35:7;40:7
upset (1)
26:19
use (1)
13:24
used (1)
10:12

V

Valhalla (1)
31:3
violated (1)
27:11
violation (1)
34:14
visit (9)
8:20;9:3,24,25;10:6,11;15:7;26:19;44:4
visitation (13)
3:9,10,11;12:19;13:3;15:24;20:9;23:24;24:25;36:10,13;38:25;39:16
visits (14)
4:17,22;5:2,8;7:1;9:5;12:17;25:10;26:22;32:20;33:10;36:15;41:10;44:8

W

Wait (3)
7:18;29:1;41:19
Walsh (10)
7:14,16;9:2;18:9;30:24;31:4,21;32:3,3,10
Walsh's (1)
37:2
wants (5)
14:6;36:18,19,25;40:15
wasn't (2)
8:24;9:10
watch (1)
26:2
way (10)
5:22;9:8;11:18,23;12:7;13:18;15:8;24:15;36:20;42:24
ways (1)
39:9
We'd (2)
18:11;33:10
we'll (7)
11:25;28:8,25;33:16;35:6;38:11,11
we're (20)
6:12;15:9,21;16:7;18:4;20:11;23:23;24:23;25:2,19;26:8;38:5;40:9;43:21,21;44:6,7,12,13,13
We've (4)
6:13;13:5;16:4;43:12
week (5)
3:6;9:24;25:22;32:20;33:15
weekend (2)
3:22,23
weeks (7)
4:10,15;23:21;28:6;34:9;38:16;40:8
weren't (2)
43:10,11
whatsoever (1)
19:11
whichever (1)
42:24
Whippoorwill (1)
32:3
whole (1)
17:4
wife (2)
4:25;38:24
willing (6)
4:17;25:22;36:8,24;38:9,13
wish (1)
34:19
without (9)
10:1,21;18:12,14,21;26:3;29:11;35:8;37:23
witness (2)
31:19,23
wonderfully (1)
19:4
word (2)
7:6,8
work (8)
14:4;16:2;20:8;21:10;28:2;29:10;33:17,19
worked (2)
5:24;36:13
working (2)
19:2;32:14
written (1)
34:22

Y

year (1)
30:2
yesterday (3)
10:13;22:10,17
York (8)
4:15;31:3,8,9;32:4;34:14;43:21,22
you'll (1)
23:11
you're (11)
9:18;24:2,5;27:17;28:11,21;29:5;40:1;44:8;45:1,12
you've (2)
11:13;21:17
young (3)
26:18;41:23;44:2

1

100 (2)
12:15;15:21
10036 (1)
31:9
10514 (1)
32:4
10595 (1)
31:3
11:00 (1)
46:1
15th (1)
34:9
19th (2)
34:9,9

2

2:44:05 (1)
3:1
24- (1)
7:3
28th (2)
45:24;46:5
29th (2)
34:7;46:4

3

3:08:00 (1)
30:19
30 (1)
30:23
[redacted] (1)
32:6
34 (1)
30:23
[redacted] (1)
32:3

4

4:30:02 (1)
30:21
4:44:00 (1)
46:7

5

5:00 (1)
11:17
[redacted] (1)
32:7

8

8 (1)
31:2

9

9:30 (1)
11:17
94105 (1)
32:7